



SPONSOR: Sen. Buckson & Rep. Yearick
Sens. Hocker, Pettyjohn

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 173

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO MENTAL HEALTH SERVICES UNIT AND FUNDING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1716E, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1716E. Mental health services unit and funding for grades K through 5.

(a) “Mental health services unit” for funding purposes means:

(5) Beginning in fiscal year 2026, 1 unit for each 250 full-time equivalent students in a school district or charter school, grades K through 5 for employment of a full-time registered nurse, board-certified assistant behavior analyst, school counselor, school social worker, or a licensed clinical social worker who is certified by the Delaware Department of Education as a school social worker. Districts and charter schools shall qualify for funding for a fractional part of 250 full-time equivalent pupils enrolled in grades K through 5.

(c) For purposes of this section:

(1) “Mental health services” means prevention, response, and coordination services delivered to students in elementary school building.

(2) “Other mental health provider” means a mental health services provider licensed by the Board of Mental Health and Chemical Dependency or a board-certified behavior analyst.

(d) Except as set forth in subsection (f) of this section, funds appropriated by this unit shall be used for employment of full-time licensed mental health providers who hold the appropriate license as required by the Board of Mental Health and Chemical Dependency Professionals or school counselors, school social workers, or school psychologists that hold the appropriate licensure and certifications under Chapter 12 of this title or registered nurses licensed by the Board of Nursing, or board-certified assistant behavior analysts or board-certified behavior analysts with the appropriate undergraduate or graduate degrees and certification from a national certifying organization that provides continuing education and training and licensure and certification from the Department of Education.

(1) School counselors shall be required to provide services that are aligned with the American School Counselor Association (ASCA) National Model, including the provisions related to indirect and direct services as those terms are defined by ASCA.

(2) School social workers shall be required to provide services aligned to the National Association of School Social Work school social work standards.

(3) School psychologists shall be required to provide services aligned with the National Association of School Psychologists (NASP) Model for Comprehensive and Integrated School Psychological Services.

(4) School district and charter schools shall adopt policies consistent with the requirements of this section to direct the provision of mental health services by registered nurses, board-certified assistant behavior analysts, and board-certified behavior analysts positions funded subject to this section.

(f) Funds appropriated in support of this unit shall be applied to the employment of a full-time certified, licensed school counselor, school social worker, licensed clinical social worker, school psychologist, registered nurse, board-certified assistant behavior analyst, board-certified behavior analyst, or licensed mental health therapists. Districts may pursue contracting out school psychologists and other mental health providers with approval of their governing board until such time as school psychologists are no longer designated by the Department of Education as a certification shortage area. Districts or charter schools must combine fractional units to fund additional full-time mental health services staff to the extent possible. Districts and charter schools may exercise a cash option consistent with the provisions of § 1716(g) of this title for any remaining fractional funding. Funds received under this provision must be used for the purchase of materials or services to be used in support of preventative and responsive mental health services herein authorized, and for no other purpose. Contracted individuals must be licensed as required by the appropriate Delaware agency.

(h) By December 31, 2025, the Department of Education, in coordination with the General Assembly, shall develop a strategic plan to reasonably expand this unit into Delaware district preschools, middle schools, and high schools.

Section 2. Amend § 1716F, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1716F. Mental health services unit and funding for middle school.

(a) “Mental health services unit for middle school” for funding purposes means:

(5) Beginning in fiscal year 2026, 1 unit for each 250 full-time equivalent students in a school district or charter school, grades 6 through 8 for employment of a full-time registered nurse, board-certified assistant behavior analyst, school counselor, school social worker, or a licensed clinical social worker who is certified by the Delaware

Department of Education as a school social worker. Districts and charter schools shall qualify for funding for a fractional part of 250 full-time equivalent pupils enrolled in grades 6 through 8.

(c) For purposes of this section:

(1) "Mental health services" means prevention, response, and coordination services delivered to students in middle school.

(2) "Other mental health provider" means a mental health services provider licensed by the Board of Mental Health and Chemical Dependency or a board-certified behavior analyst.

(d) Except as set forth in subsection (e) of this section, funds appropriated by this unit shall be used for employment of full-time licensed mental health therapists who hold the appropriate license as required by the Board of Mental Health and Chemical Dependency Professional or school counselors, school social workers, or school psychologists that hold the appropriate licensure and certifications under Chapter 12 of this title or registered nurses licensed by the Board of Nursing or board-certified assistant behavior analysts or board-certified behavior analysts with the appropriate undergraduate or graduate degrees and certification from a national certifying organization that provides continuing education and training and hold the appropriate license and certification from the Department of Education.

(1) School counselors shall be required to provide services that are aligned with the American School Counselor Association (ASCA) National Model, including the provisions related to indirect and direct services as those terms are defined by ASCA.

(2) School social workers shall be required to provide services aligned to the National Association of School Social Work school social work standards.

(3) School psychologists shall be required to provide services aligned with the National Association of School Psychologists (NASP) Model for Comprehensive and Integrated School Psychological Services.

(4) School districts and charter schools shall adopt policies consistent with the requirements of this section to direct the provision of mental health services by registered nurses, board-certified assistant behavior analysts, and board-certified behavior analysts positions funded subject to this section.

(e) Funds appropriated in support of this unit shall be applied to the employment of a full-time certified, licensed school counselor, school social worker, licensed clinical social worker, school psychologist, registered nurse, board-certified assistant behavior analyst, board-certified behavior analyst, or licensed mental health therapist. Districts may pursue contracting out school psychologists or other mental health providers with approval of their governing board until such time as school psychologists are no longer designated by the Department of Education as a certification shortage area. Districts or charter schools must combine fractional units to fund additional full-time mental health services staff to the

81 extent possible. Districts and charter schools may exercise a cash option consistent with the provisions of § 1716(g) of this
82 title for any remaining fractional funding. Funds received under this provision must be used for the purchase of materials or
83 services to be used in support of preventative and responsive mental health services herein authorized, and for no other
84 purpose.

85 Section 3. Amend § 1716H, Title 14 of the Delaware Code by making deletions as shown by strike through and
86 insertions as shown by underline as follows:

87 § 1716H. Mental health services unit and funding for high school.

88 (a) “Mental health services unit for high school” for funding purposes means:

89 (3) Beginning in fiscal year 2026, 1 unit for each 250 full-time equivalent students in a school district or
90 charter school, grades 9 through 12, for employment of a full-time registered nurse, board-certified assistant behavior
91 analyst, school counselor, school social worker, or a licensed clinical social worker who is certified by the Delaware
92 Department of Education as a school social worker. Districts and charter schools shall qualify for funding for a
93 fractional part of 250 full-time equivalent pupils enrolled in grades 6 through 8.

94 (c) For purposes of this section:

95 (1) “Mental health services” means prevention, response, and coordination services delivered to students in
96 high school.

97 (2) “Other mental health provider” means a mental health services provider licensed by the Board of Mental
98 Health and Chemical Dependency, or board-certified behavior analyst.

99 (d) Except as set forth in subsection (e) of this section, funds appropriated by this unit shall be used for
100 employment of full-time licensed mental health services providers who hold an appropriate license as required by the Board
101 of Mental Health and Chemical Dependency Professionals or school counselors, school social workers, or school
102 psychologists that hold the appropriate licensure and certifications under Chapter 12 of this title or registered nurses
103 licensed by the Board of Nursing or board-certified assistant behavior analysts or board-certified behavior analysts with the
104 appropriate undergraduate or graduate degrees and certification from a national certifying organization that provides
105 continuing education and training and hold the appropriate license and certification from the Department of Education.

106 (1) School counselors are required to provide services that are aligned with the American School Counselor
107 Association (ASCA) National Model, including the provisions related to indirect and direct services as those terms are
108 defined by ASCA.

109 (2) School social workers are required to provide services aligned to the National Association of School
110 Social Work school social work standards.

111 (3) School psychologists are required to provide services aligned with the National Association of School
112 Psychologists Model for Comprehensive and Integrated School Psychological Services.

113 (4) School districts and charter schools shall adopt policies consistent with the requirements of this section to
114 direct the provision of mental health services by registered nurses, board-certified assistant behavior analysts, and
115 board-certified behavior analysts positions funded subject to this section.

116 (e) Funds appropriated in support of this unit shall be applied to the employment of a full-time certified, licensed
117 school counselor, school social worker, licensed clinical social worker, school psychologist, registered nurse, board-
118 certified assistant behavior analyst, board-certified behavior analyst, or other mental health provider. Districts may pursue
119 contracting out school psychologists and other mental health providers with approval of their governing board until such
120 time as school psychologists are no longer designated by the Department of Education as a certification shortage area.
121 Districts or charter schools must combine fractional units to fund additional full-time mental health services staff to the
122 extent possible. Districts and charter schools may exercise a cash option consistent with the provisions of § 1716(g) of this
123 title for any remaining fractional funding. Funds received under this provision must be used for the purchase of materials or
124 services to be used in support of preventative and responsive mental health services herein authorized, and for no other
125 purpose.

SYNOPSIS

House Bill No. 100 of the 151st General Assembly, House Bill No. 200 of the 152nd General Assembly, and House Bill No. 300 of the 151st General Assembly created dedicated mental health services units for purposes of funding the hire of mental health professionals in Delaware public schools. This Act updates the list of positions that may be funded through mental health services unit funding to include registered nurses authorized to practice by the Delaware Board of Nursing, board-certified assistant behavior analysts, and board-certified behavior analysts. Currently, such professionals may provide mental health services to Delaware students and are employed by Delaware school districts and charter schools, but these positions may not be funded under Title 14 through mental health services units. This Act expands flexibility and further support for school districts and charter schools to meet the needs of Delaware students by adding registered nurses that practice in schools, board-certified assistant behavior analysts, and board-certified behavior analysts to the list of positions that may be funded as described in Chapter 17 of Title 14 of the Delaware Code. This Act also makes technical corrections to confirm to the standards of the Delaware Legislative Drafting manual.

Author: Senator Buckson